

2022 P L C (C.S.) 1464

[Lahore High Court]

Before Jawad Hassan and Muzamil Akhtar Shabir, JJ

MUHAMMAD IJAZ and others

Versus

GOVERNMENT OF THE PUNJAB and others

Intra Court Appeal No.74277 of 2021, decided on 29th November, 2021.

(a) Constitution of Pakistan---

---Arts.199 & 112---Jurisdiction of High Court---Civil service---Service Tribunal, exclusive jurisdiction of---Alternate/efficacious remedy---Single Judge of High Court dismissed the constitutional petition of the appellants---Held, that the appellants were, admittedly, the civil servants and their prayer pertained to terms/conditions of a civil servant---Appellants had an alternate efficacious remedy by approaching the departmental appellate authority and then the respective Service Tribunal for redressal of their grievance---Jurisdiction of High Court was barred---Constitutional petition was not maintainable due to the bar contained under Art.212 of the Constitution---Intra Court appeal was dismissed in limine.

Indus Trading and Contracting Company v. Collector of Customs (Preventive) Karachi and others 2016 SCMR 842; Dr. Sher Afgan Khan Niazi v. Ali S. Habib and others 2011 SCMR 1813 and Muhammad Abbasi v. S.H.O. Bhara Kahu and 7 others PLD 2010 SC 969 rel.

(b) Constitution of Pakistan---

---Art. 199---Assumption of jurisdiction, question of---Principle---Every Court prior to taking cognizance/adjudicating upon an issue should first resort to the question of assumption of its jurisdiction and if it comes to the conclusion that jurisdiction is to be assumed only then the issue can be adjudicated upon.

Government of Sindh through, Secretary Education and Literacy Department and others v. Nizakat Ali and others 2011 SCMR 592 and Fauji Foundation and another v. Shamimur Rehman PLD 1983 SC 457 rel.

(c) Constitution of Pakistan---

---Arts.199 & 112---Service Tribunal, exclusive jurisdiction of---Terms/conditions of civil service, enforcement of---Scope---For enforcement of terms/condition of civil servants, Tribunals had been constituted under Art. 212 of the Constitution which had exclusive jurisdiction to look into the matter and decide the questions relating thereto.

Ali Azhar Khan Baloch and others v. Province of Sindh and others 2015 SCMR

456; National Assembly Secretariat v. Manzoor Ahmed and another 2015 SCMR 253; Peer Muhammad v. Government of Balochistan through Chief Secretary and others 2007 SCMR 54; Asadullah Rashid v. Haji Muhammad Muneer and others 1998 SCMR 2129; Khalid Mahmood Wattoo v. Government of Punjab and others 1998 SCMR 2280; Khalil ur Rehman and others v. Government of Pakistan and others PLD 1981 Kar. 750 and Dr. Ghazanffarullah and 2 others v. Secretary Health, Government of Punjab, Lahore and 6 others 2010 PLC (C.S.) 51 rel.

Mian Sardar Ali Gehlan and Muhammad Ishnaq Sahou for Appellants.

ORDER

Through this Intra Court Appeal filed under Section 3 of the Law Reforms Ordinance, 1972 (the "Ordinance"), the Appellants have challenged the validity of impugned order dated 20.10.2021 passed in Writ Petition No.39895 of 2021 by the learned Single Judge (the "Impugned Order") whereby the Constitutional petition filed by the Appellants was dismissed.

2. We have heard the arguments advanced by the learned counsel for the parties and perused the record made available.

3. From the perusal of record it reveals that the learned Single Judge in Chamber while dismissing the writ petition has made the following observation:-

"The Petitioners have been repatriated from their respective Traffic Districts to their parent regions, therefore, the matter essentially relates to the terms and conditions of civil servant. In the circumstances, this Court has no jurisdiction to entertain and adjudicate such dispute due to bar contained under Article 212 of the Constitution".

4. At the very outset it is observed here that the Hon'ble Supreme Court of Pakistan in its judgment reported as "Government of Sindh through, Secretary Education and Literacy Department and others v. Nizakat Ali and others" (2011 SCMR 592) has held that every Court prior to taking cognizance and adjudicating upon an issue should first resort to the question of assumption of its jurisdiction and if it comes to the conclusion that jurisdiction can be assumed only then the issue can be adjudicated upon. The question regarding assumption of jurisdiction and its exercise has very comprehensively been dealt with and decided by the Hon'ble Supreme Court of Pakistan in the case titled "Fauji Foundation and another v. Shamimur Rehman" (PLD 1983 SC 457).

5. Admittedly, the Appellants are civil servants and their prayer pertains to terms and conditions of a civil servant. For enforcement of the same Tribunals have been constituted under Article 212 of the Constitution which has exclusive jurisdiction in the matter to look into and decide the questions relating to terms and conditions of service of a civil servant. The afore-noted bar has been sufficiently dilated upon by the Hon'ble Supreme Court of Pakistan in its various pronouncements and has held in unequivocal and clear terms that the bar is absolute. Reliance can be placed on the judgments reported as "Ali Azhar Khan Baloch and others v. Province of Sindh and others" (2015 SCMR 456), "National Assembly Secretariat v. Manzoor Ahmed and another" (2015 SCMR 253), "Peer Muhammad v. Government of Balochistan through Chief Secretary and others"

(2007 SCMR 54), "Asadullah Rashid v. Haji Muhammad Muneer and others" (1998 SCMR 2129), "Khalid Mahmood Wattoo v. Government of Punjab and others" (1998 SCMR 2280), "Khalil ur Rehman and others v. Government of Pakistan and others" (PLD 1981 Karachi 750) and "Dr. Ghazanffarullah and 2 others v. Secretary Health, Government of Punjab, Lahore and 6 others" (2010 PLC (C.S.) 51).

6. In view of the fact that Appellants have an alternate efficacious remedy by approaching the departmental appellate authority and then the respective Service Tribunal for redressal of their grievance, therefore, jurisdiction of this Court is barred. While dealing with the question of maintainability of a petition before this Court in the wake of an alternate efficacious remedy available to a litigant, the Hon'ble Supreme Court of Pakistan in judgments reported as "Indus Trading and Contracting Company v. Collector of Customs (Preventive) Karachi and others" (2016 SCMR 842), "Dr. Sher Afgan Khan Niazi v. Ali S. Habib and others" (2011 SCMR 1813) and "Muhammad Abbasi v. S.H.O. Bhara Kahu and 7 others" (PLD 2010 SC 969) has held that in the wake of availability of an alternate efficacious remedy, jurisdiction of this Court under Article 199 of the Constitution cannot be invoked.

7. We fully agree with the finding of the learned Single Judge who dismissed the writ petition being not maintainable due to the bar contained under Article 212 of the Constitution and see no illegality or jurisdictional error in the impugned judgment which has been passed in line with the dictates of law and does not warrant any interference by this Division Bench.

8. Resultantly, the instant Appeal, being bereft of any force, is accordingly dismissed in limine.

ZH/M-32/L

Appeal dismissed.